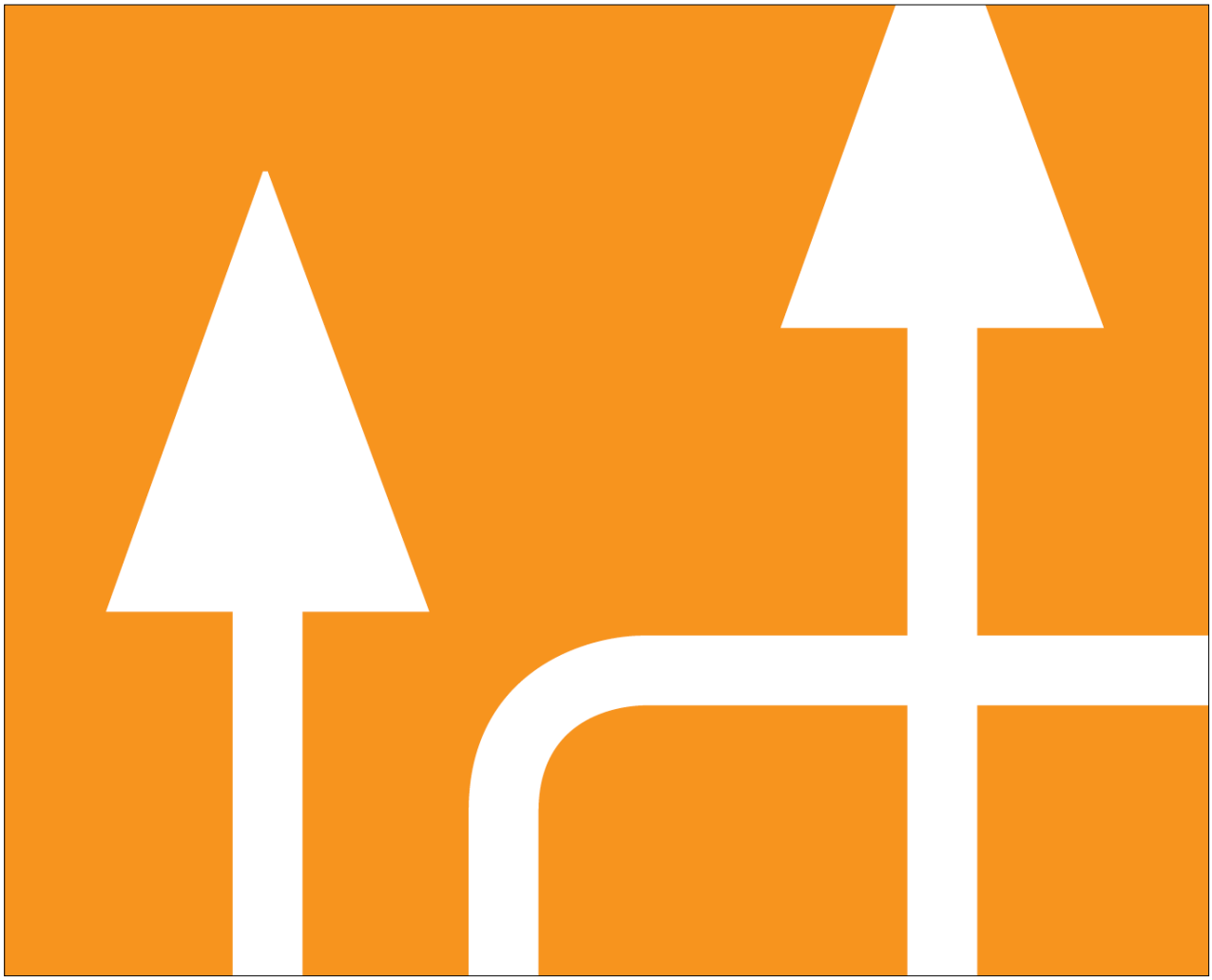

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inspiring STEM
Strategy · Communications · Engagement

Establishing the Saudi Clinical Knowledge Ecosystem: Strategic vision and preliminary goals

Prepared for:
Dr Theeb Alkahtani
Waraqa LLC

Prepared by:
Martin Delahunty
Inspiring STEM Consulting Limited

February 4, 2023

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PROJECT SPECIFICATION

Background

Waraqa is a Saudi startup that specialises in the correct handling of medical literary publications, from their infancy to their publication in custom created online journals, and beyond in events such as scientific conferences, symposiums and awareness campaigns.

Waraqa supports government-laid objectives and directives and especially Visions 2030, the official Kingdom of Saudi Arabia government plan for achieving growth and increased international presence in all sectors by the year 2030. This includes the consistent and proven efforts in assisting many local institutions and medical facilities in improving their ranking by increasing their outreach capabilities, transparency and overall quality of published materials.

Waraqa has created a strategic vision to create a unified and, single-sign-on, clinical knowledge ecosystem and repository for all medical-related literary advancements in Saudi Arabia. The immediate objective is to secure government funding and support to then develop a 5-year strategic plan with specific goals and deliverables.

Scope of work

Inspiring STEM Consulting will provide consulting and advisory services to support Waraqa in developing the vision and implementation of strategic plans to establishing the Saudi Clinical Knowledge Ecosystem.

The first stage will be to support the presentation of the strategic vision and preliminary goals with the goal of securing government funding. This work will be treated as a priority and begin immediately on signing of agreement.

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Deliverables and pricing

OBJECTIVES	WORK DELIVERABLES	DAYS	PRICE (@ £800 per day)
High-level summary strategic presentation (maximum 10 x Powerpoint slides)	• Powerpoint slides • Graphics to illustrate workflows • Images • Revisions to drafts	2.5	£2,000
Supporting Word and PDF document (maximum 20 x A4 pages)	• Strategic vision to establish the Kingdom of Saudi Arabia as the world leader in clinical research by: 1. Improving access to evidence-based clinical knowledge resources 2. Increasing number, engagement with, quality and impact of peer reviewed clinical research publications 3. Increasing volume of clinical research studies and improving patient and physician participation 4. Improving quality and the management of clinical research 5. Increasing access to and reliability of clinical data • Critical success factors • Description of supporting technology tools • Literature references • Revisions to drafts	3.5	£2,800
TOTAL		6.0	£4,800

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CONSULTANT AGREEMENT

COMMENCEMENT DATE: 4 February 2023

This Agreement is made between **WARAQA LLC** whose registered office is Prince Mohamed Ben Saad Road, Building #6427, First floor, office # 1&2, Al Malqa Neighborhood, P.O.Box 3254, post code:13524. Riyadh, Kingdom of Saudi Arabia (hereinafter "Waraqa"), and **INSPIRING STEM CONSULTING LIMITED,** a private limited company whose registered office is 736 High Road, North Finchley, London N12 9QD, UK (hereinafter "The Consultant"). In this Agreement, the term Party shall mean Waraqa or Inspiring STEM and where used in the plural shall mean Waraqa and Inspiring STEM.

WHEREAS
The Consultant has agreed to provide publishing consulting services upon the terms and conditions of this Agreement.

NOW IT IS AGREED as follows:

1. **DEFINITIONS** In this Agreement the following expressions shall have the following meanings:

    1.1. "Services" means the services to be provided by the Consultant as described in the Schedule.

    1.2. "Programme" means the programme for the provision of the Services set out in the Schedule.

    1.3. "Additional Services" means any additional services requested by Waraqa to be provided by the Consultant that are not included within the description of the Services.

    1.4. "Price" means the fixed, all inclusive price for the provision of the Services as detailed in the Schedule.

    1.5. "Rates" means the rates payable in respect of the Additional Services as detailed in the Schedule.

    1.6. "Confidential Information" means all or any written material, documentation, illustrations, photographs, designs, drawings, data, technical, business and similar information of a confidential nature relating to the business of Waraqa or its clients including all readable or computer or other machine readable data.

    1.7. "Intellectual Property" means any patent, registered design, copyright, database right, design right, topography right, trade mark, trade name, application to register any of the aforementioned rights, trade secret, inventions, computer software, right in un-patented know-how, right of confidence and any other intellectual or industrial property right of any nature whatsoever in any part of the world including without limitation:

        1.7.1.any renewals, revisions and extensions created or provided by the laws of any country;

        1.7.2.all rights of action and remedies in relation to past infringements; and

        1.7.3.the right to apply for registration of any such rights in any country of the world.

    1.8. "Documents" means all records, reports, documents, papers, media and other materials whatsoever created by Waraqa or on behalf of Waraqa or originated by or upon behalf of the Consultant pursuant to this Agreement.

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1.9. "Expenses" means the expenses which the consultant shall be entitled to be paid as set out in the Schedule.

1.10. 'Works' shall mean any documents, reports and any other materials or media which are produced or created by the Consultant for Waraqa.

1.11. "Key Personnel" means the person or persons as defined in the Schedule.

1.12. 'Project Manager' means the person or persons as defined in the Schedule.

2. The Consultant's Work

2.1. The Consultant shall provide the Services in accordance with the Programme.

2.2. The Consultant shall provide the Additional Services.

2.3. The Consultant shall provide the Services and the Additional Services to Waraqa at such times and at such locations as Waraqa shall reasonably direct.

2.4. Whilst providing the Services and the Additional Services the Consultant may give the impression that he is a representative of Waraqa provided that the Consultant shall not hold him/herself out as being able to bind Waraqa.

2.5. The Consultant shall, in the provision of the Services and the Additional Services, liaise with and report to the Project Manager or such other individual nominated by Waraqa.

3. Standard of the Consultant's Work

3.1. In the provision of the Services and the Additional Services, the Consultant shall use the skill care and knowledge to be expected of an expert in his/her profession. The Consultant shall undertake any training as deemed necessary by Waraqa to perform his/her duties.

3.2. The Consultant shall not be entitled to assign any of his/her obligations hereunder, nor to engage the services of any subcontractor to carry out any of his/her obligations hereunder, without the prior written consent of the Project Manager.

3.3. The Consultant shall comply with such conditions, policies and procedures as shall be notified by Waraqa to the Consultant from time to time.

3.4. The Consultant shall project a professional image and demonstrate commitment to the work of Waraqa at all times.

3.5. If in the reasonable opinion of Waraqa there is any unsatisfactory or incomplete work it shall be made good at the Consultant's own expense and within an agreed timescale.

3.6. The Consultant shall ensure that all of its personnel engaged in the provision of the Services and the Additional Services:

3.6.1. have the necessary skills, expertise, qualifications and diligence to undertake such work and will conform to the professional standards generally observed for similar services; and

3.6.2. comply with the provisions in this Agreement relating to Confidential Information; and

3.7. The Consultant agrees that the Services and the Additional Services will be carried out by the Key Personnel.

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3.8. The Consultant agrees that the Key Personnel shall not be replaced before the completion of the Services and the Additional Services without notice to Waraqa, unless:

3.8.1. the individual to be replaced is prevented by ill-health from carrying out his or her duties in connection with this Agreement for a significant period;

3.8.2. the individual resigns from employment with the Consultant;

3.8.3. the contract of employment of the individual is terminated; or

3.8.4. Waraqa makes a reasonable written request to the Consultant to replace the individual because he has performed unsatisfactorily or has caused a breach of any of the Consultant's obligations under this Agreement.

3.9. If any such person is replaced, the Consultant shall consult with Waraqa about the identity of a suitable replacement.

4. Payment

4.1. In consideration of the Consultant providing the Services, Waraqa shall pay to the Consultant the Price which shall be invoiced to the Waraqa upon the achievement of the specified milestones set out in the Programme and subject to the terms set out in clause 5.

4.2. In consideration of any Additional Services, Waraqa shall pay to the Consultant the amounts invoiced by the Consultant to Waraqa calculated in accordance with the Rates and subject to the terms set out in clause 5.

4.3. The reasonable expenses (whether in respect of travelling or other out-of-pocket expenses) of the Consultant directly incurred in carrying out the Services or the Additional Services shall be payable by Waraqa in accordance with the guidelines appearing in the Schedule subject to all such expenses having been approved in writing by Waraqa prior to being incurred.

4.4. The Consultant shall maintain records of time spent, and invoices shall be prepared in such detail as Waraqa may require, to enable Waraqa to verify the amount claimed for payment.

5. Invoicing and Payment

5.1. The Consultant shall be entitled to submit an invoice on the 20th of each month against the achievement of the milestones in the Programme.

5.2. The Consultant shall be entitled to submit an invoice on the achievement of any Additional Services in accordance with the Rates.

5.3. Waraqa will pay each invoice within 10 days of its receipt, subject to Waraqa being satisfied as to the quality of the Services provided and the stage of completion of milestones.

5.4. The Services being provided by the Consultant are not subject to VAT.

6. Confidentiality

6.1. The Consultant shall secure and keep safe any Confidential Information and Intellectual Property which he may obtain or create during the course of providing the Services relating to Waraqa's business or activities and shall not, during the course of this Agreement or any time thereafter, disclose such information to any other person.

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6.2. On the ending of the Agreement the Consultant shall return to Waraqa all Confidential Information, the Documents and any other documents, data in whatever form, or drawings with which he may have been supplied by Waraqa and any copies of the same which he may have made during the course of providing the Services.

6.3. The obligations of confidence referred to in Clause 6.1 shall not apply to any Confidential Information or documents or any other information which:

6.3.1. is in the possession of and is at the free disposal of the Consultant, or is published or is otherwise in the public domain prior to the date of this Agreement;

6.3.2. is, or becomes, publicly available on a non-confidential basis through no fault of the Consultant;

6.3.3. is received in good faith by the Consultant from a third party who, on reasonable enquiry by the Consultant, claims to have no obligations of confidence to Waraqa in respect of it and who imposes no obligations of confidence upon the Consultant.

6.4. The ownership of and copyright in the Intellectual Property, the Documents, the Works and any reports, or data in any form which the Consultant may prepare during the provision of the Services, shall belong to Waraqa and shall not be reproduced or disclosed by the Consultant.

6.5. The Consultant shall not without the prior written consent of Waraqa:

6.5.1. Sell, hire rent or otherwise deal with, part with possession of or distribute the Intellectual Property, the Documents, the Works or any work in progress, reports or data in any form which the Consultant may prepare during the provision of the Services.

6.5.2. Permit the Intellectual Property, the Documents, the Works or any work in progress, reports or data in any form which the Consultant may prepare during the provision of the Services to be copied or made available to any third party.

6.5.3. Use the Intellectual Property, the Documents, the Works or any work in progress, reports or data in any form which the Consultant may prepare during the provision of the Services to create any derivative works or other works therefrom.

7. Intellectual Property Rights

7.1. The Consultant agrees to assign to Waraqa all right, title and interest in and to any Confidential Information and Intellectual Property made, originated or developed during the course of or otherwise related to the Services, together with any other Intellectual Property rights arising out of the provision of the Services. For the avoidance of doubt, title to all new Intellectual Property (including but not limited to copyright) arising from the conduct of the Services shall wholly vest in or be wholly vested in Waraqa (unless subject to third party rights).

7.2. All Intellectual Property subsisting in the Documents is the property of Waraqa.

7.3. Waraqa hereby grants the Consultant a non exclusive terminable licence to use the Documents, and the Intellectual Property subsisting in the Documents during the term of this Agreement, such use shall be limited to what is required to fulfil the Consultant's obligations under this Agreement.

7.4. All Intellectual Property subsisting in the Works during the term of this Agreement is hereby assigned by the Consultant to Waraqa.

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7.5. The Consultant hereby unconditionally and irrevocably waives, in respect of the Works and any updates or revisions to such Works made by the Consultant, all rights to be identified as the author of the Works and all rights to object to derogatory treatment of the Works to which the Consultant may now or at any future time be entitled under the Copyright, Designs and Patents Act 1988 as amended from time to time and under all similar legislation from time to time in force anywhere in the world.

7.6. The Consultant agrees and undertakes not to reproduce or include in the Documents or the Works any Intellectual Property owned by any other party.

7.7. The provisions of this clause 6.6 shall apply during the continuance of this contract and after its termination howsoever arising.

8. Status of the Consultant

8.1. The parties acknowledge that under the terms of this Agreement the Consultant has been engaged as an independent consultant and this Agreement constitutes a contract for the provision of services and not a contract of employment. Accordingly, nothing in this Agreement will make the Consultant an employee, agent or partner of the Waraqa and the Consultant will not hold himself out as such.

8.2. As the Consultant is not an employee he will not be entitled to receive from the Waraqa any salary, bonus or sick pay, holiday pay, pension contributions or any other employee benefits.

8.3. The Consultant being a private limited company, shall be responsible for all income tax liabilities and national insurance or similar contributions in respect of the fees paid by the Waraqa in accordance with clause 4.1 herein and the Waraqa shall not make any deductions from the fees payable to the Consultant unless required to do so by law. The Consultant agrees to indemnify the Waraqa forthwith against any loss, costs, interest, liability, damages or proceedings howsoever arising out of or in connection with any non-payment by the Consultant of any income tax and/or national insurance liabilities relating to the Services.

8.4. In respect of the Services provided to the Waraqa, the Consultant agrees that an amount equal to the amount of tax (if any) so assessed by a tax authority and paid by the Waraqa to the relevant tax authority may be deducted from any fees payable to the Consultant under this Agreement.

8.5. The Consultant will account for any applicable VAT to the appropriate authorities.

8.6. The Consultant shall adhere to the principles of all Waraqa's policies and procedures whilst on Waraqa's business and at all Waraqa offices. The Project Manager will be able to advise on these matters. Failure to comply with Waraqa's policies and procedures will result in the termination of the Consultant's business relationship and contract for Services.

9. Term and termination

9.1. This Agreement shall be effective from the commencement date and shall remain in force (subject to earlier termination pursuant to this Clause) until 31 March 2023 (the "Expiration Date").

9.2. Either party shall be entitled to terminate this Agreement. One month's written notice of termination shall be given by either party.

9.3. Either party shall be entitled to terminate this Agreement forthwith if the other party shall be in serious or continued breach of its obligations. Without limitation Waraqa may, by notice in writing, immediately terminate this Agreement if the Consultant shall:

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9.3.1. be in breach of any of the terms of this Agreement which in the case of a breach capable of remedy is not remedied by the Consultant within 21 days of receipt by the Consultant of a notice from Waraqa specifying the breach and requiring its remedy;

9.3.2. be incompetent, guilty of gross misconduct and/or serious or persistent negligence in respect of his/her obligations hereunder;

9.3.3. fail or refuse after written warning to carry out the duties reasonably and properly required of him hereunder.

9.4. The Waraqa shall have the right to terminate this Agreement in the event:

9.4.1. that the Consultant breaches the terms of any licence provided under this Agreement;

9.4.2. that the Consultant infringes the intellectual property of Waraqa;

9.4.3. that an order is made or a resolution is passed for the winding up of the Consultant, or circumstances arise which entitle a court of competent jurisdiction to make a winding up order of the Consultant; or

9.4.4. that an order is made for the appointment of an administrator to manage the affairs, business and property of the Consultant, or documents are filed with a court of competent jurisdiction for the appointment of an administrator of the Consultant, or notice of intention to appoint an administrator is given by the Consultant or its directors or by a qualifying floating charge holder (as defined in paragraph 14 of Schedule B1 to the Insolvency Act 1986); or

9.4.5. that a receiver is appointed of any of the Consultant's assets or undertaking, or circumstances arise which entitle a court of competent jurisdiction or a creditor to appoint a receiver or manager of the Consultant or if any other person takes possession of or sells the Consultant's assets; or

9.4.6. that the Consultant makes any arrangement or composition with its creditors, or makes an application to a court of competent jurisdiction for the protection of its creditors in any way; or

9.4.7. that the Consultant ceases, or threatens to cease, to trade; or

9.4.8. of any other reason in the reasonable discretion of the Waraqa.

9.5. Notwithstanding the foregoing, Waraqa may not terminate this Agreement solely for the reason of the Consultant's inability to provide the Services through illness or injury, unless such illness or injury prevents the Consultant providing any Services to Waraqa for a consecutive period of six weeks or for an aggregate period of six weeks in any period of 12 calendar months.

10. Assignment

10.1. Neither party may assign or otherwise transfer this Agreement without the prior written consent of the other party. In the event that consent for assignment is given, the terms of this Agreement will be binding upon each party's respective successor.

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11. Payment on Termination

11.1. If this Agreement shall be terminated because of the default of the Consultant then the Consultant shall indemnify Waraqa against costs, losses or damages suffered by Waraqa as a result of such default.

12. Indemnity

12.1. The Consultant shall indemnify and hold the Waraqa harmless from all claims and all direct, indirect or consequential liabilities (including loss of profits, loss of business, depletion of goodwill and similar losses), costs proceedings, damages and expenses (including legal and other professional fees and expenses) awarded against, or incurred or paid by the Waraqa as a result of or in connection with: (a) any alleged or actual infringement, whether or not under English law, of any third party's Intellectual Property Rights or other rights arising out of the use or supply of the Services; (b) any claim made against the Waraqa in respect of any liability, loss, damage, death, injury, professional negligence, cost or expense sustained by the Waraqa's employees or agents or by any third party to the extent that such liability, loss, damage, injury, cost or expense was caused by, relates to or arises from the provision of the Services as a consequence of a direct or indirect breach or negligent performance or failure or delay in performance of this Agreement by the Consultant.

12.2. The Consultant shall insure against the claims and all direct, indirect or consequential liabilities (including loss of profits, loss of business, depletion of goodwill and similar losses), costs proceedings, damages and expenses (including legal and other professional fees and expenses) described in clause 11.1. hereof.

13. Notices

13.1. Any notice to be given under this Agreement shall be in writing and shall be deemed to be sufficiently served by one party on the other if it is either delivered personally or is sent by prepaid first class post and addressed to the party to whom it is to be given, in the case of the Consultant and at the last known residence of the Consultant and in the case of Waraqa at its head office, and any such notice so posted shall be deemed to have been served on the date (excluding Sundays and public holidays) following that on which it was posted.

14. Changes to the Agreement

14.1. All changes to this Agreement must be approved in writing by authorised officials of both parties and follow the procedure set out in clauses 13.2 to 13.5 of this Agreement.

14.2. The party wishing to initiate a change ("the initiator") must advise the other party ("the recipient") of the proposed change in writing (by post or by email).

14.3. The recipient will consider and assess the proposal and if necessary enter into dialogue with the initiator in order to formulate its response.

14.4. The recipient will respond to the initiator's proposal in writing (by post or by email) and include related information such as variations in fees which may arise as a consequence of the proposed change.

14.5. The parties will use their reasonable endeavours to reach agreement concerning the proposed change.

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15. Severability

15.1. The provisions of this Agreement shall be deemed severable, and the lack of enforceability of any one of the provisions shall not affect the enforceability of other provisions. In the event that a provision is found to be unenforceable, the parties shall substitute that provision with an enforceable provision that preserves the original intent and position of the parties.

16. Entire Agreement

16.1. This document constitutes the entire agreement between the parties and supersedes all other prior agreements between the parties for the provision of such services.

17. Law and Jurisdiction

17.1. This Agreement shall be governed by and construed in accordance with the law of England and each party agrees to submit to the exclusive jurisdiction of the courts of England.

This agreement should be returned within 10 days of the date of issue.

For Inspiring STEM Consulting Ltd Martin Delahunty	 Signed: Dated: 04/02/23
For Waraqa Ltd Dr Theeb Alkahtani	Signed: Dated:

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SCHEDULE

1. Services

1.1. Inspiring STEM Consulting will provide consulting and advisory services to support Waraqa in developing the vision and implementation of strategic plans to establishing the Saudi Clinical Knowledge Ecosystem.

1.2. The first stage will be to support the presentation of the strategic vision and preliminary goals with the goal of securing government funding. This work will be treated as a priority and begin immediately on signing of agreement.

2. Programme

2.1. The Programme and the Price agreed by the Parties are set out in the following table, which shows the services which must be provided in to release payment of the Price. (Note: The Consultant is not currently subject to VAT and therefore the Price is exclusive of VAT.)

OBJECTIVES	WORK DELIVERABLES	DAYS	PRICE (@ £800 per day)
High-level summary strategic presentation	Highly visual Powerpoint slides and client meetings to revise	2.0	£1,600
Supporting Word and PDF document	Comprehensive Word and PDF document and client meetings to revise	4.0	£3,200
TOTAL		6.0	£4,800

3. Rates

3.1. Any Additional Services will be charged at a minimum of a 1/2 day rate. Additional Services might include presentations, meeting attendance, workshop or administrative services. The Rates are exclusive of VAT.

4. Expenses

4.1. Guidelines relating to the reimbursement of Expenses of the Consultant. Any Expenses incurred by the Consultant in the performance of this Agreement, such as hotel costs and air/rail travel, will only be reimbursed by Waraqa if:

4.1.1. they are reasonable

4.1.2. they are agreed in advance with the Project Manager

4.1.3. claims for such expenses are accompanied by valid receipts.

4.1.4. all expenses must be inclusive of VAT.

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